

BEFORE THE STATE BOARD OF ADDICTION COUNSELOR EXAMINERS AND THE STATE
BOARD OF LICENSED PROFESSIONAL COUNSELOR EXAMINERS

STATE OF COLORADO

Case Nos. 2018-7397 & 2018-7398

STIPULATION AND FINAL AGENCY ORDER

IN THE MATTER OF DISCIPLINARY PROCEEDINGS REGARDING THE CERTIFICATE TO
PRACTICE ADDICTION COUNSELING IN THE STATE OF COLORADO AND THE LICENSE TO
PRACTICE PROFESSIONAL COUNSELING IN THE STATE OF COLORADO OF SARAH CONTI,
CERTIFICATE NO. CAC III 7247, LICENSE NO. LPC 661,

Respondent.

IT IS HEREBY STIPULATED by and between the State Board of Addiction Counselor
Examiners and the State Board of Licensed Professional Counselors (together,
"Boards") and Sarah Conti ("Respondent"), as follows:

1. The Boards have jurisdiction over Respondent and the subject matter of this
Stipulation and Final Agency Order ("Order").

2. Respondent was certified to practice as a Certified Addiction Counselor III
("CAC III") and licensed to practice as a Professional Counselor ("LPC") the State of
Colorado at all times relevant herein.

3. It is the intent of the parties and the purpose of this Order to provide for a
settlement of all matters arising out of the complaint in case numbers 2018-7397 and
2018-7398 without the necessity of holding a formal hearing. This Order is a full and
final resolution of case numbers 2018-7397 and 2018-7398. This Order does not
resolve any other cases, complaints, or matters, known or unknown to the Boards or
Respondent, as of the effective date of this Order.

4. Respondent admits the following:

- a. On or around July 2018, Respondent failed to provide written monthly
reports as required by her position as a DVOMB approved provider.

- b. Respondent's mandatory disclosure statement was inadequate.
- c. Respondent failed to maintain boundaries by allowing a client to complete work in her community.

5. By virtue of the admissions in paragraph 4 above, Respondent admits and the Boards find that Respondent violated sections 12-43-214(1)(b)(I) and 12-43-222(1)(g)(I), (i), (p) and (u), C.R.S., which state:

12-43-214. Mandatory disclosure of information to clients. (1) Except as otherwise provided in subsection (4) of this section, every licensee, registrant, or certificate holder shall provide the following information in writing to each client during the initial client contact.

(b)(I) An explanation of the levels of regulation applicable to mental health professionals under this article and the differences between licensure, registration, and certification, including the educational, experience, and training requirements applicable to the particular level of regulation.

12-43-222. Prohibited activities--related provisions. (1) A person licensed, registered, or certified under this article 43 violates this article 43 if he or she:

(g)(I) Has acted or failed to act in a manner that does not meet the generally accepted standards of the professional discipline under which the person practices. Generally accepted standards may include, at the board's discretion, the standards of practice generally recognized by state and national associations of practitioners in the field of the person's professional discipline;

(i) Has maintained relationships with clients that are likely to impair such person's professional judgment or increase the risk of client exploitation, such as treating employees, supervisees, close colleagues, or relatives;

(p) Has failed to comply with any of the requirements pertaining to mandatory disclosure of information to clients pursuant to section 12-43-214;

(u) Has falsified or repeatedly made incorrect essential entries or repeatedly failed to make essential entries on patient records.

6. By virtue of the admissions in paragraphs 4 and 5 above, Respondent is subject to the following disciplinary sanction(s) that the Boards believe is necessary to protect the public health, safety, and welfare.

ADMONISHMENT

7. On the basis of the findings set forth in paragraphs 4 and 5, the Boards hereby admonish Respondent for violations of sections 12-43-214(1)(b)(I) and 12-43-222(1)(g)(I), (i), (p) and (u), C.R.S. This Order is effective as a Letter of Admonition, set forth by section 12-43-224(3)(d), C.R.S. As part of the admonishment, Respondent agrees to the following terms as a Board Order:

CONTINUING EDUCATION

8. Within two (2) years of the effective date of this Order, Respondent must successfully complete twenty (20) hours of Board-approved professional continuing education ("CE") courses in the areas of boundaries, documentation, and ethics. Respondent shall obtain Board approval of the courses prior to enrolling in each course. Upon completion of a course, Respondent shall ensure that a certificate of completion is provided to the Boards. These hours of CE completed pursuant to this section shall be required in addition to, and may not be counted toward, the mandatory Continuing Professional Development requirements for an active Colorado license or to meet any other licensure requirements.

TERMS AND CONDITIONS

9. Respondent will strictly observe the prohibitions set forth in section 12-43-222, C.R.S., and will ensure that she does not engage in any activities that are prohibited and that she practices in accordance with the generally accepted standards of practice.

10. All expenses incurred or associated with education or any other requirement necessary to fulfill the terms of this Order, shall be the sole responsibility of Respondent and not the Boards.

11. In the event Respondent relocates at any time prior to completing the terms of this Order, Respondent shall notify the Boards of the change of address within 30 days of the effective date of such change.

12. Respondent is fully aware of and understands the right to receive a formal notice of hearing and charges and to have a formal disciplinary hearing, pursuant to section 12-43-224, C.R.S., and hereby waives those rights. Further, Respondent also

13. This Order is entered into by Respondent voluntarily and without coercion, after an opportunity to consult with counsel and with full understanding of the legal consequences of this Order and the right to formal hearing on all matters herein.

14. This Order shall become an order of the Boards when it is accepted and signed by the Program Director or authorized Board representatives.

15. The Order entered pursuant to this Stipulation and Final Agency Order shall constitute a Board order for purposes of section 12-43-222, C.R.S., and shall have the same force and effect as an order entered after a formal disciplinary hearing pursuant to section 12-43-224, C.R.S.

16. Respondent acknowledges and agrees that any violation of this Order shall constitute a violation of a lawful Board Order and be grounds for further proceedings pursuant to the Mental Health Practice Act and, if proven, may constitute a basis for further disciplinary action. The pendency of any disciplinary action shall not affect the obligation of Respondent to comply with the terms of this Order, and this Order shall remain operative and in full force and effect.

17. This Order constitutes the entire agreement between Respondent and the Boards. There are no other promises expressed or implied. In the event that any provision of this Order is deemed unenforceable by a court of competent jurisdiction, such provision shall be severed, and the remainder of this Order shall be given full force and effect.

18. This Order shall become effective upon (a) mailing by first-class mail to Respondent at Respondent's address of record with the Boards, or (b) service by electronic means on Respondent at Respondent's electronic address of record with the Boards. Respondent hereby consents to service by electronic means if Respondent has an electronic address on file with the Boards.

19. This Order shall be admissible as evidence at any hearing held before the Boards.

20. This Order shall be a public record in the custody of the Boards.

AGREED TO AND ACCEPTED BY:

RESPONDENT


SARAH CONTI
CAC III 7247
LPC 661

AGREED TO AND ORDERED BY:

**STATE BOARD OF ADDICTION COUNSELOR
EXAMINERS AND STATE BOARD OF
LICENSED PROFESSIONAL COUNSELOR
EXAMINERS**


DARCIE MAGNUSON
Interim Program Director

Effective this 27th day of February
2019.